

COMMITTEE ON PUBLIC SAFETY
SENATE AMENDMENTS TO S.B. 1107
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 38-884, Arizona Revised Statutes, is amended to
3 read:

4 38-884. Membership of retirement plan; termination; credited
5 service; redemption; reemployment

6 A. Each employee of a participating employer is a member of the
7 plan unless the employee is receiving a pension from the plan. A person
8 employed shall undergo a medical examination performed by a designated
9 physician or a physician working in a clinic that is appointed by the
10 local board or, in the case of a state correctional officer who is
11 employed by the state department of corrections, complete a physical
12 examination pursuant to section 41-1822, subsection ~~B~~ D. For the
13 purposes of subsection B of this section, the designated physician or a
14 physician working in a clinic that is appointed by the local board may be
15 the employer's regular employee or contractor.

16 B. The purpose of the medical examination authorized by this
17 section is to identify a member's physical or mental condition or injury
18 that existed or occurred before the member's date of membership in the
19 plan. Any employee who fails or refuses to submit to the medical
20 examination prescribed in this section is deemed to waive all rights to
21 disability benefits under this article. Medical examinations conducted
22 under this article shall be conducted by a physician and shall not be
23 conducted or used for purposes of hiring, advancing, discharging, job
24 training or other terms, conditions and privileges of employment unrelated
25 to receipt or qualification for pension benefits or service credits from
26 the fund. This subsection does not affect or impair the right of an
27 employer to prescribe medical or physical standards for employees or
28 prospective employees.

1 C. If a member who becomes a member of the plan before January 1,
2 2012 ceases to be an employee for any reason other than death or
3 retirement, within twenty days after filing a completed application with
4 the board, the member is entitled to receive the following amounts, less
5 any benefit payments the member has received and any amount the member may
6 owe to the plan:

7 1. If the member has less than five years of credited service with
8 the plan, the member may withdraw the member's accumulated contributions
9 from the plan.

10 2. If the member has five or more years of credited service with
11 the plan, the member may withdraw the member's accumulated contributions
12 plus an amount equal to the amount determined as follows:

13 (a) 5.0 to 5.9 years of credited service, twenty-five percent of
14 all member contributions deducted from the member's salary pursuant to
15 section 38-891, subsection B.

16 (b) 6.0 to 6.9 years of credited service, forty percent of all
17 member contributions deducted from the member's salary pursuant to section
18 38-891, subsection B.

19 (c) 7.0 to 7.9 years of credited service, fifty-five percent of all
20 member contributions deducted from the member's salary pursuant to section
21 38-891, subsection B.

22 (d) 8.0 to 8.9 years of credited service, seventy percent of all
23 member contributions deducted from the member's salary pursuant to section
24 38-891, subsection B.

25 (e) 9.0 to 9.9 years of credited service, eighty-five percent of
26 all member contributions deducted from the member's salary pursuant to
27 section 38-891, subsection B.

28 (f) 10.0 or more years of credited service, one hundred percent of
29 all member contributions deducted from the member's salary pursuant to
30 section 38-891, subsection B.

31 D. If a member who becomes a member of the plan before January 1,
32 2012 has more than ten years of credited service with the plan, leaves the
33 monies prescribed in subsection C of this section on account with the plan
34 for more than thirty days after termination of employment and after that
35 time period requests a refund of those monies, the member is entitled to
36 receive the amount prescribed in subsection C of this section plus
37 interest at a rate determined by the board for each year computed from and
38 after the member's termination of employment.

39 E. The accumulated member contributions of a member who ceases to
40 be an employee for a reason other than death or retirement and who becomes
41 a member of the plan:

42 1. On or after January 1, 2012 and before July 1, 2018 shall be
43 paid to the member plus interest at a rate determined by the board as of
44 the date of termination within twenty days after filing with the plan a
45 written application for payment.

46 2. For a member who has less than ten years of credited service
47 with the plan, on or after July 1, 2018 shall be paid to the member plus

1 interest at a rate determined by the board as of the date of termination
2 within twenty days after filing with the plan a written application for
3 payment.

4 F. If the refund includes monies that are an eligible rollover
5 distribution and the member elects to have the distribution paid directly
6 to an eligible retirement plan or individual retirement account or annuity
7 and specifies the eligible retirement plan or individual retirement
8 account or annuity to which the distribution is to be paid, the
9 distribution shall be made in the form of a direct trustee-to-trustee
10 transfer to the specified eligible retirement plan. The distribution
11 shall be made in the form and at the time prescribed by the board.

12 G. For distributions occurring from and after December 31, 2007, a
13 member or a member's beneficiary, including a nonspouse designated
14 beneficiary to the extent allowed under subsection H of this section, may
15 roll over an eligible rollover distribution as defined in section
16 402(c)(4) of the internal revenue code to a Roth individual retirement
17 account, if, for distributions occurring before January 1, 2010, the
18 member or the member's beneficiary satisfies the requirements for making a
19 Roth individual retirement account contribution under section
20 408A(c)(3)(B) of the internal revenue code, as in effect on the date of
21 the rollover. Any amount rolled over to a Roth individual retirement
22 account is included in the gross income of the member or the member's
23 beneficiary to the extent the amounts would have been included in gross
24 income if not rolled over as required under section 408A(d)(3)(A) of the
25 internal revenue code. For the purposes of this subsection, the
26 administrator is not responsible for ensuring the member or the member's
27 beneficiary is eligible to make a rollover to a Roth individual retirement
28 account.

29 H. For distributions made from and after December 31, 2009, a
30 nonspouse designated beneficiary as defined in section 401(a)(9)(E) of the
31 internal revenue code may elect to directly roll over an eligible rollover
32 distribution to an individual retirement account under section 408(a) of
33 the internal revenue code or an individual retirement annuity under
34 section 408(b) of the internal revenue code that is established on behalf
35 of the designated beneficiary and that will be treated as an inherited
36 individual retirement plan pursuant to section 402(c)(11) of the internal
37 revenue code. In order to be able to roll over the distribution, the
38 distribution otherwise must satisfy the definition of an eligible rollover
39 distribution as defined in section 402(c)(4) of the internal revenue
40 code. In applying this subsection, a nonspouse rollover is subject to the
41 direct rollover requirements under section 401(a)(31) of the internal
42 revenue code, the rollover notice requirements under section 402(f) of the
43 internal revenue code and the mandatory withholding requirements under
44 section 3405(c) of the internal revenue code.

45 I. For plan years occurring before January 1, 2007, the period for
46 providing the rollover notice as required under section 402(f) of the
47 internal revenue code is not less than thirty days and not more than

1 ninety days before the date of distribution and, for plan years beginning
2 from and after December 31, 2006, the period for providing the rollover
3 notice as required under section 402(f) of the internal revenue code is
4 not less than thirty days and not more than one hundred eighty days before
5 the date of distribution.

6 J. Service shall be credited to a member's individual credited
7 service account in accordance with rules the local board prescribes. In
8 no case shall more than twelve months of credited service be credited on
9 account of all service rendered by a member in any one year. In no case
10 shall service be credited for any period during which the member is not
11 employed in a designated position, except as provided by sections 38-921
12 and 38-922.

13 K. Credited service is forfeited if the amounts prescribed in
14 subsection C, D or E of this section are paid or are transferred in
15 accordance with this section.

16 L. If a former member becomes reemployed with the same employer
17 within two years after the former member's termination date, a member may
18 have forfeited credited service attributable to service rendered during a
19 prior period of service as an employee restored on satisfaction of each of
20 the following conditions:

21 1. The member files with the plan a written application for
22 reinstatement of forfeited credited service within ninety days after again
23 becoming an employee.

24 2. The retirement fund is paid the total amount previously
25 withdrawn pursuant to subsection C, D or E of this section plus compound
26 interest from the date of withdrawal to the dates of repayment. Interest
27 shall be computed at the rate of nine percent for each year compounded
28 each year from the date of withdrawal to the date of repayment. Forfeited
29 credited service shall not be restored until complete payment is received
30 by the fund.

31 3. The required payment is completed within one year after
32 returning to employee status.

33 M. If a member who receives a severance refund on termination of
34 employment pursuant to subsection C, D or E of this section is
35 subsequently reemployed by an employer, the member's prior service credits
36 are cancelled, and the board shall credit service only from the date the
37 member's most recent reemployment period commenced. A present active
38 member of the plan who received a refund of accumulated contributions from
39 the plan pursuant to subsection C, D or E of this section, forfeited
40 credited service pursuant to subsection K of this section and becomes
41 reemployed with the same employer two years or more after the member's
42 termination date or becomes reemployed with another employer may elect to
43 redeem any part of that forfeited credited service by paying into the plan
44 any amounts required pursuant to this subsection. A present active member
45 who elects to redeem any part of forfeited credited service for which the
46 member is deemed eligible by the board shall pay into the plan the amounts
47 previously paid or transferred as a refund of the member's accumulated

1 contributions plus an amount, computed by the plan's actuary that is
2 necessary to equal the increase in the actuarial present value of
3 projected benefits resulting from the redemption calculated using the
4 actuarial methods and assumptions prescribed by the plan's actuary. On
5 satisfaction of this obligation, the board shall reinstate the member's
6 prior service credits.

7 N. A retired member may become employed by the employer from which
8 the employee retired in a designated position and continue to receive a
9 pension if the employment occurs at least six months after retirement.
10 The retired member shall not contribute to the fund and shall not accrue
11 credited service. If a retired member becomes employed by the employer
12 from which the employee retired in a designated position, including in a
13 contracted or leased position, before six months after retirement, the
14 following apply:

15 1. Payment of the retired member's pension shall be suspended until
16 the retired member again ceases to be an employee. The amount of pension
17 shall not be changed on account of service as an employee subsequent to
18 retirement.

19 2. The retired member shall not contribute to the fund and shall
20 not accrue credited service.

21 3. Any pension payments received by a retired member, who retired
22 on or after July 1, 2009, during a period of reemployment are considered
23 overpayments pursuant to section 38-899. If the board determines in the
24 board's sole discretion, for a member who retired on or after July 1,
25 2009, that the retired member's reemployment during the six-month period
26 and the failure of the employer or the local board to suspend the member's
27 pension were not intentional to circumvent the requirements of this
28 subsection, the pension payments received by the retired member during
29 reemployment are subject to repayment up to only the amount received
30 between the date of the member's reemployment and the expiration of the
31 six-month period.

32 4. If a retired member who retired on or after July 1, 2009 and who
33 is reemployed terminates employment, the retired member may be
34 subsequently reemployed with the employer from which the member retired in
35 a designated position and resume receiving pension payments after a period
36 of six months, less the period of time the retired member was not
37 reemployed by the employer from which the member retired in a designated
38 position after retirement, if at least sixty days of the six months are
39 consecutive.

40 O. Notwithstanding any other provision of this article, a member
41 who retires having met all of the qualifications for retirement and who
42 subsequently becomes an elected official, by election or appointment, is
43 not considered reemployed by the same employer.

1 Sec. 2. Section 41-1822, Arizona Revised Statutes, is amended to
2 read:

3 41-1822. Powers and duties of board; definition

4 A. With respect to peace officer training and certification, the
5 board shall:

6 1. Establish rules for the government and conduct of the board,
7 including meeting times and places and matters to be placed on the agenda
8 of each meeting.

9 2. Make recommendations, consistent with this article, to the
10 governor, the speaker of the house of representatives and the president of
11 the senate on all matters relating to law enforcement and public safety.

12 3. Prescribe reasonable minimum qualifications for officers to be
13 appointed to enforce the laws of this state and the political subdivisions
14 of this state and certify officers in compliance with these
15 qualifications. Notwithstanding any other law, the qualifications shall
16 require United States citizenship, shall relate to physical, mental and
17 moral fitness and shall govern the recruitment, appointment and retention
18 of all agents, peace officers and police officers of every political
19 subdivision of this state. The board shall constantly review the
20 qualifications established by this section and may amend the
21 qualifications at any time, subject to the requirements of section
22 41-1823.

23 4. Prescribe minimum courses of training and minimum standards for
24 training facilities for law enforcement officers. Only this state and
25 political subdivisions of this state may conduct basic peace officer
26 training. Basic peace officer academies may admit individuals who are not
27 peace officer cadets only if a cadet meets the minimum qualifications
28 established by paragraph 3 of this subsection. Training shall include:

29 (a) Courses in responding to and reporting all criminal offenses
30 that are motivated by race, color, religion, national origin, sexual
31 orientation, gender or disability.

32 (b) Training certified by the director of the department of health
33 services with assistance from a representative of the board on the nature
34 of unexplained infant death and the handling of cases involving the
35 unexplained death of an infant.

36 (c) Medical information on unexplained infant death for first
37 responders, including awareness and sensitivity in dealing with families
38 and child care providers, and the importance of forensically competent
39 death scene investigations.

40 (d) Information on the protocol of investigation in cases of an
41 unexplained infant death, including the importance of a consistent policy
42 of thorough death scene investigation.

43 (e) The use of the infant death investigation checklist pursuant to
44 section 36-3506.

45 (f) If an unexplained infant death occurs, the value of timely
46 communication between the medical examiner's office, the department of
47 health services and appropriate social service agencies that address the

1 issue of infant death and bereavement, to achieve a better understanding
2 of these deaths and to connect families to various community and public
3 health support systems to enhance recovery from grief.

4 5. Recommend curricula for advanced courses and seminars in law
5 enforcement and intelligence training in universities, colleges and
6 community colleges, in conjunction with the governing body of the
7 educational institution.

8 6. Make inquiries to determine whether this state or political
9 subdivisions of this state are adhering to the standards for recruitment,
10 appointment, retention and training established pursuant to this article.
11 The failure of this state or any political subdivision to adhere to the
12 standards shall be reported at the next regularly scheduled meeting of the
13 board for action deemed appropriate by that body.

14 7. Employ an executive director and other staff as are necessary to
15 fulfill the powers and duties of the board in accordance with the
16 requirements of the law enforcement merit system council.

17 8. BEGINNING JANUARY 1, 2027, ESTABLISH AN ALTERNATIVE PATHWAY FOR
18 PEACE OFFICER CERTIFICATION IN THIS STATE FOR ~~[ANY OF THE FOLLOWING TYPES~~
19 ~~OF APPLICANTS:~~

20 ~~(a) VETERANS OF THE UNITED STATES ARMED FORCES WHO ARE HONORABLY~~
21 ~~DISCHARGED.~~

22 ~~(b) FORMER MILITARY POLICE OFFICERS OR INDIVIDUALS WHO SERVED IN A~~
23 ~~SUBSTANTIALLY SIMILAR CAPACITY.] [VETERANS OF THE UNITED STATES ARMED~~
24 ~~FORCES WHO WERE MILITARY POLICE OFFICERS AND WHO WERE HONORABLY~~
25 ~~DISCHARGED.]~~

26 B. THE ALTERNATIVE PATHWAY FOR PEACE OFFICER CERTIFICATION THAT IS
27 ESTABLISHED PURSUANT TO SUBSECTION A, PARAGRAPH 8 OF THIS SECTION SHALL DO
28 ALL OF THE FOLLOWING:

29 1. ACCEPT AN APPLICANT'S EXISTING MILITARY POLICE TRAINING AND
30 EXPERIENCE TOWARD THE ARIZONA PEACE OFFICER STANDARDS AND TRAINING
31 REQUIREMENTS OF THIS STATE.

32 2. ALLOW ELIGIBLE APPLICANTS TO COMPLETE AN ABBREVIATED ARIZONA
33 PEACE OFFICER STANDARDS AND TRAINING PROGRAM THAT FOCUSES ON THE LAWS,
34 PROCEDURES AND COMMUNITY POLICING REQUIREMENTS OF THIS STATE.

35 3. REQUIRE APPLICANTS TO PASS THE BOARD-APPROVED CERTIFICATION
36 EXAMINATION ON PEACE OFFICER PROCEDURES AND THE LAWS OF THIS STATE AND
37 MAINTAIN ALL CURRENT STATUTORY REQUIREMENTS RELATING TO MORAL CHARACTER,
38 MEDICAL AND PSYCHOLOGICAL FITNESS AND BACKGROUND INVESTIGATIONS.

39 C. ALL ELIGIBLE APPLICANTS SHALL SUBMIT AN APPLICATION ON A FORM
40 PRESCRIBED BY THE BOARD FOR THE ALTERNATIVE PATHWAY FOR PEACE OFFICER
41 CERTIFICATION ESTABLISHED PURSUANT TO SUBSECTION A OF THIS SECTION AND THE
42 BOARD SHALL PROCESS ALL APPLICATIONS WITHIN SIXTY DAYS AFTER RECEIVING A
43 COMPLETED APPLICATION.

44 ~~B.~~ D. With respect to state department of corrections correctional
45 officers, the board shall:

46 1. Approve a basic training curriculum of at least two hundred
47 forty hours.

1 2. Establish uniform minimum standards. These standards shall
2 include high school graduation or the equivalent and a physical
3 examination as prescribed by the director of the state department of
4 corrections.

5 3. Establish uniform standards for background investigations,
6 including criminal histories under section 41-1750, of all applicants
7 before enrolling in the academy. The board may adopt special procedures
8 for extended screening and investigations in extraordinary cases to ensure
9 suitability and adaptability to a career as a correctional officer.

10 4. Issue a certificate of completion to any state department of
11 corrections correctional officer who satisfactorily complies with the
12 minimum standards and completes the basic training program. The board may
13 issue a certificate of completion to a state department of corrections
14 correctional officer who has received comparable training in another state
15 if the board determines that the training was at least equivalent to that
16 provided by the academy and if the person complies with the minimum
17 standards.

18 5. Establish continuing training requirements and approve
19 curricula.

20 ~~E.~~ E. With respect to peace officer misconduct, the board may:

21 1. Receive complaints of peace officer misconduct from any person,
22 request law enforcement agencies to conduct investigations and conduct
23 independent investigations into whether an officer is in compliance with
24 the qualifications established pursuant to subsection A, paragraph 3 of
25 this section.

26 2. Receive a complaint of peace officer misconduct from the
27 president or chief executive officer of a board recognized law enforcement
28 association that represents the interests of certified law enforcement
29 officers if the association believes that a law enforcement agency refused
30 to investigate or made findings that are contradictory to prima facie
31 evidence of a violation of the qualifications established pursuant to
32 subsection A, paragraph 3 of this section. If the board finds that the
33 law enforcement agency refused to investigate or made findings that
34 contradicted prima facie evidence of a violation of the qualifications
35 established pursuant to subsection A, paragraph 3 of this section, the
36 board shall conduct an independent investigation to determine whether the
37 officer is in compliance with the qualifications established pursuant to
38 subsection A, paragraph 3 of this section and provide a letter of the
39 findings based on the investigation conducted by the board to the
40 president or chief executive officer of the board recognized law
41 enforcement association who made the complaint.

42 ~~D.~~ F. The board may:

43 1. Deny, suspend, revoke or cancel the certification of an officer
44 who is not in compliance with the qualifications established pursuant to
45 subsection A, paragraph 3 of this section.

1 2. Provide training and related services to assist state, tribal
2 and local law enforcement agencies to better serve the public, including
3 training for emergency alert notification systems.

4 3. Enter into contracts to carry out its powers and duties.

5 ~~F.~~ G. This section does not create a cause of action or a right to
6 bring an action, including an action based on discrimination due to sexual
7 orientation.

8 ~~F.~~ H. For the purposes of this section, "sexual orientation" means
9 consensual homosexuality or heterosexuality.

10 Sec. 3. Legislative intent and findings

11 The legislature intends to establish an accelerated, fair and
12 standardized process for eligible military police veterans to receive
13 Arizona peace officer certification and finds that:

14 1. Military police veterans possess substantial training,
15 discipline and law enforcement experience gained through active duty
16 service.

17 2. Transitioning veterans into civilian policing strengthens public
18 safety while honoring their service.

19 3. Several states, including Texas, Florida and North Carolina
20 provide expedited pathways for military police to become peace officers.

21 Sec. 4. Short title

22 This act may be cited as the "Military Police to Peace Officer
23 Pathway Act".

24 Enroll and engross to conform

25 Amend title to conform

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